

Mohd. Shahab v. State of U.P.

High Court of Judicature at Allahabad, Lucknow Bench · Division Bench · 28.11.2022 · WRIT-C No. 8345 of 2022 ·
Writ disposed; clause 6.5(b) representation left open with stay

HEADNOTE

Regular bills had been paid, but a further demand was raised for a mistake in those bills without prior intimation of the reason for rectification. The writ was disposed of without deciding the demand. The consumer may represent under clause 6.5(b) of the U.P. Electricity Supply Code, 2005 within two weeks; the competent authority must decide after opportunity, preferably within one month. Coercive measures are stayed for one month or until that decision.

FACTUAL SUMMARY

The petitioner, Mohd. Shahab, approached the Allahabad High Court at Lucknow against the State of Uttar Pradesh and the electricity authorities. Opposite parties 2 to 4 had raised a demand said to arise from a mistake in bills already issued. He had paid the regular electricity bills throughout. He disputed the further liability because he had not been informed of any reason before those bills were rectified.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5(b)

Disputed rectification demand left to a clause 6.5(b) representation

HOLDING

Where regular electricity bills have been paid and the consumer disputes a further demand raised on account of a mistake in those bills, without prior intimation of the reason for rectification, the writ is disposed of by leaving him to a representation before the competent authority under clause 6.5(b) of the U.P. Electricity Supply Code, 2005. If made within two weeks, the authority must decide it after due opportunity, expeditiously and preferably within one month of filing, and coercive measures are not to be taken for one month or until that decision. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The billing dispute was not adjudicated in writ. The petition was disposed of with liberty to represent to the competent authority under clause 6.5(b) within two weeks. ¶ 1

clause-6.5-statutory-remedy-disputed-bill A further demand said to arise from mistaken bills, disputed for want of prior intimation of the reason for rectification, was left to the clause 6.5(b) representation. ¶ 1

para-6.5-objection-before-coercive-recovery Coercive measures against the consumer were directed not to be taken for one month or until decision on the clause 6.5(b) representation. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE DEMAND RAISED ON RECTIFICATION OF THE BILLS WAS LAWFUL, AND WHETHER PRIOR INTIMATION OF THE REASON WAS REQUIRED

Left to the competent authority if a representation under clause 6.5(b) is made within two weeks ¶ 1